APPENDIX

S. N.	Item (Ref. COC)	Data
1	Employer	**Oberoi Realty Limited**
2	Contractor	**M/s _____**
3	Project Site and Address	**Oberoi Elysian** Oberoi Garden City, Off Western Express Highway, Goregaon (East), Mumbai 400063, Maharashtra
4	BOQ	Bill of Quantities used in tendering in which materials, parts, and labour (and their costs) are itemized.
5	COC	Conditions of Contract (**COC**) as set out in Annexure 01
6	Project In Charge	Project Director and in the absence, Executive Vice President (EVP)
7	Contractor's Authorised Representative	The name and particulars of the Contractor's Authorized Representative shall be submitted by the Contractor to the Employer's Project In-Charge within 07 (Seven) days from the Commencement Date.
8	Scope of Works (COC 01)	The scope of work of Contractor (hereinafter called the "Works") shall include but not be limited to: • Design, Supply, Installation, Testing and Commissioning(DSITC) of Automatic Retractable Roof • All resources including machineries, equipment, scaffolding, consumables, manpower etc. to complete the scope of work. • Site to site shifting, Handling of all the required materials including Employer supplied materials to execute the works. • The works to be executed as per instructions of Employer's Project In-charge The scope of works is further detailed in the respective line items of the Bill of Quantities along with the estimated quantities.
9	Contract Amount (COC 02)	INR Rs _____/- (Rupees in words _____ Only) inclusive of GST, duties and levies as on the date of execution hereof.
10	Rate Validity (COC 02)	1(One) year after the Completion Date.
11	Commencement Date (COC 03)	Immediately after award of Work to the contractor or Notice To Proceed (NTP) issued by the Employer, whichever is earlier.
12	Completion Date (COC 03)	Scope to be completed within 60 (Sixty) days from the date of Commencement Date.
13	Performance Bank Guarantee ("**PBG**") (COC 04)	Contractor to submit PBG (as specified below) from the Bank approved by the Employer as per approved format which shall be valid from Commencement date to Completion Date and as more particularly set out in COC 4 of the Works Contract. a) Percentage of Performance Security ("PBG") shall be as follows: 1. For Contract Amount up to Rs. 9.99 Lakhs: NIL 2. For Contract Amount from Rs. 10 Lakhs up to Rs. 4.99 Crores: 5% of Contract Amount (Excl. GST). 3. For Contract Amount Above Rs. 5 Crores: 5% of Contract

		Amount (Excl. GST) Rs. 5 Cr. + (CV - Rs. 5 Cr.) x 2.5%. b) PBG amount shall remain unchanged till variation in Original Contract Amount of +/- 25%. c) In case of Contract Amount varies beyond above specified limits due to subsequent amendments, the PBG amount shall be adjusted (+/-) for amended contract amount. d) PBG shall be released upon completion of the Works and issuance of Virtual Completion Certificate ("**VCC**") by the Employer and completion of all snags e) If no PBG is submitted, additional cash retention on a progressive basis. The same shall be released after the virtual completion of work.
14	Retention – Percentage of the retention Amount	The retention shall be in the form of cash retention which shall be deducted at a rate of 5% (Five percent) of the gross bill value (excluding GST) on a progressive basis until the final bill and to be retained by the Employer until the completion of DNP in line with the above mentioned stages and as more particularly set out in COC 36 of the Works Contract.
15	Periods for submission of insurance policies (COC 11)	a) Evidence of insurance: 30 (Thirty) days from the date of execution of the Works Contract, or as per statutory requirement, whichever is earlier. b) Procurement of policies: 60 (Sixty) days from the date of execution of the Works Contract, or as per statutory requirement, whichever is earlier.
16	Mobilization Advance Payment (COC 34)	a) 50% of the Contract value as non-recoverable advance along with tax against submission of ABG in approved format. b) ABG shall be released after lifting of the entire material at the respective terrace location at site.
17	Payment Terms (COC 35)	BOQ line items in with the Payment Stages mentioned below shall be payable on 100% successful completion of Work/Stage on a pro rata basis. The RA bills shall be submitted on a monthly basis. a) 50% of the contract value as non-recoverable advance along with tax against submission of ABG in approved format b) 30% of the unit rate shall be payable upon delivery of material. c) 20% of the unit rate shall be payable upon successful installation, testing, d) The certified RA Bills shall be paid within fifteen (15) days of receipt of Contractor's certified Bill along with Tax Invoice at the Employer's head office, subject to subsequent certification thereof as follow e) The final bill shall be certified and paid in full within One (1) months of the issuance of the VCC (defined below) by the Project In-Charge.
18	Advance Payments and recovery for Specified	Not applicable

	materials	
19	Dedicated Bank account	The Contractor shall maintain a dedicated bank account for receiving advances from the Employer, from time to time, towards procurement of material in connection with the works.
20	Defects Notification Period (COC 44)	The Defects Notification Period (the "DNP") including the comprehensive maintenance shall be of 24 (Twenty Four) months after the issue of Virtual Completion Certificate issued by Employer separately for both the Stages mentioned above and completion of all snags.
21	Liquidated Damages (**LD**) for Delay (COC 06)	0.50% (Zero-point five percent) of the Final Contract Amount for each calendar week of delay over and above the Completion Date including any extension/reduction of time (if applicable) up to a maximum of 5% (five percent) of the Final Contract Amount.
22	Incidental, Overhead and Profit for Non-Tender Items	Limited to 15% on actual cost incurred, and as more particularly set out in COC 42 of the Works Contract.
23	Consequential losses (COC 44)	Consequential losses shall be limited to any losses incurred due to rectification or reinstatement of any permanent or enabling Works, damaged due to reasons attributable to the Contractor.
24	Material supplied by the Employer on Free issue basis	Not applicable
25	List of Specified Materials	Not applicable
26	Water and Electricity (COC 14)	Water & Electricity will be provided at one point by the Employer free of cost. Further distribution will be on the vendor's scope, and as more particularly set out in COC 14 of the Works Contract.
27	Works Contracts (COC 02)	The following documents collectively: a) Agreement b) Appendix c) Annexure 01: Conditions of Contract. d) Annexure 02: BOQ e) Annexure 03: Safety, Health & Environment Rules and Regulations. f) Annexure 04: List of Statutory Compliances. g) Annexure 05: Material Inspection Request. h) Annexure 06: Drawings i) Annexure 07: Technical Specifications: (Not Applicable) j) Annexure 08: Basic Rate of Specified Materials. : (Not Applicable) k) Annexure 09: List of Approved Manufacturers / makes. : (Not Applicable) l) Annexure 10: Flow Chart for acceptance of material on site.

		m) Annexure 11: Flow Chart for dispatch of rejected material out of site. n) Annexure 12: Draft of Bank Guarantee. o) Annexure 13: Draft of Deed of Warranty. p) Annexure 14: Technical Deviations q) Annexure 15: List of Equipment, Technical Staff and Construction Schedule: (Not Applicable) r) Annexure 16: Material Supplied by the Employer on Free Issue Basis: (Not Applicable)
28	Communication (COC 09)	Project In-Charge and in the absence, the Project Director. All Contractual communications shall mandatorily be marked in "cc" to the Project Contract Lead and Head of Department, Contracts of the Employer.
29	Housekeeping (COC 21)	The Contractor shall remove debris from work location and collect at designated place at the Project site as instructed by the Employer. The cost of removal of debris out of Project Site shall also be in the scope of the Contractor. Statutory permission & approval fees towards Solid Waste Management from City Municipal Corporation Department will also be borne by the Contractor.
30	Dewatering (COC 15)	Not applicable.
31	Labour Colony	Outside of site premises by the Contractor and as more particularly set out in COC 1 of the Works Contract.
32	Works	The Works shall include but not limited to Design, Supply, Fabrication, Installation, Testing and Commissioning of Retractable roof in accordance with the Technical Specifications, Drawings and Instructions as issued by the Employer from time to time, BOQ and any other documents forming part of the Works Contract. The contractor shall solely be responsible for Timely Delivery, Quality and Safety of the Works. The scope of works is further detailed in the respective line items of the Bill of Quantities. Any work not mentioned expressly in the tender documents but required to maintain the performance criteria and design intent of the Works shall be included in the Contractor's scope of work and the price for any such work is deemed to be included in the Contract Amount. In the event of an increase in the works due to Contractor's fault and/or Contractor obtains any information that leads it to believe that certain additional works are required for the due performance of its obligation under this Contract, then the same shall be performed by Contractor at no additional cost or expense

		and will not be treated as variation in quantities. The Contractor shall price for complete working system whether or not all components and expenditures are explicitly mentioned in detail in tender documents. The priced rates shall include all items for the system to work. Omissions if any will not be subject to measurement. To obtain necessary permissions licenses etc. as required from statutory bodies. The Contractor shall also prepare submit Design Calculation, Shop Drawings for the Works for written approval of the Project In-charge of the Employer. The contractor shall also be responsible for delivery of the materials required for successful Performance of the Works referred above and providing supervision and project management at site solely be responsible for timely delivery, quality and safety of the Works, cost which included in the agreed rates mentioned in the BOQ.